YATAKALA TRADING (PRIVATE) LIMITED

And

SHLOMO YOSEF LEPAR

versus

S.M MUTIRO N.O: REGIONAL MAGISTRATE, BULAWAYO

And

THE STATE

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 20 FEBRUARY 2026

Court application for review in terms of rule 62 of the high court rules, 2021 and ss 26 and 29 of the high court act [chapter 7:06])

Advocate T Mpofu, for the applicants
First respondent in default
KM Guveya, for the second respondent

NDUNA J: The applicants appeared before the first Respondent in a criminal trial at Bulawayo. On appearance for trial, the two took exception to the charge. The exception was dismissed by the first respondent and following the dismissal, the two took the matter for review before this court. The two pray for an order to the following effect: -

1. The ruling of the 2nd Respondent delivered on 28 October 2025 in CRB 686–7/25 dismissing the Applicants' exception is hereby reviewed and set aside.
2. The charge of theft under s 113 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] preferred against the Applicants in CRB 686–7/25 is hereby quashed for failure to disclose any offence known to law.
3. The continuation of proceedings in CRB 686–7/25 is declared an abuse of process and is permanently stayed.

FACTUAL BACKGROUND

The dispute arises from criminal proceedings instituted under CRB 686–7/25, in which the Applicants were charged with theft in contravention of section 113 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*].The charge stems from a commercial transaction involving contractual cancellation and refund payments. The Applicants maintain that the matter was civil in nature and that it related to contractual obligations and subsequent refund arrangements. Related civil litigation under case number HC1958/2020 was ultimately dismissed. Despite this civil background, the Applicants were prosecuted criminally and raised an exception to the charge on the basis that it failed to disclose an offence known to

On 28 October 2025, the Regional Magistrate dismissed the Applicants' exception and ruled that the charge was triable. The Applicants contend that the decision constitutes a gross irregularity, is grossly unreasonable, and reflects a misdirection in law. They argue that the charge sheet does not set out the essential elements of theft, including identification of the property, ownership, unlawful appropriation, and intention to permanently deprive.

The Applicants further submit that the continuation of the proceedings amounts to an abuse of process, particularly in light of the prior dismissal of the related civil claim. They contend that the criminal prosecution seeks to revive issues previously ventilated in civil proceedings, thereby undermining procedural fairness. They also assert that the record of proceedings reveals inconsistencies and omissions which compromise the integrity of the process.

On the day of the hearing, the 2nd respondent entered appeared and raised a preliminary point to strike out additional pleadings which had been filed by the applicant. Upon that appearance, the applicant also raised a preliminary objection. The applicant contends that the legal practitioner representing the second respondent ought not to have been permitted to act, on the basis that he is the deponent to the affidavits filed of record. Having deposed to the affidavits, he assumed the position of a witness and is thereby precluded from acting as counsel in the same proceedings.

The second respondent, in response, argues that the legal practitioner's involvement was limited to the initial hearing. It is contended that he intended only to

address the court on the application to strike out certain pleadings and thereafter relinquish conduct of the matter to another practitioner.

APPLICATION OF THE LAW

It is common cause that the legal practitioner addressed the court and sought the striking out of specified pleadings. He maintains that his role was confined to arguing that interlocutory issue. The applicant challenges this approach and submits that such a division of roles is impermissible. Once a legal practitioner deposes to affidavits in contested proceedings, he cannot competently assume the role of advocate in the same matter. The objection is therefore directed at the propriety of the dual role undertaken.

The matter before the court is a single, indivisible proceeding. It cannot be fragmented by allocating representation of one party to one legal practitioner and another party to a different practitioner in a manner that treats the proceedings as separate causes. Both practitioners were acting on behalf of the same authority, namely the Prosecutor-General. Their participation formed part of one continuous and unified representation in the same proceedings. It is therefore impermissible to isolate the conduct of one practitioner from that of the other as though distinct mandates existed.

The second legal practitioner for the 2nd Respondent has adopted and relied upon the same pleadings filed by the first. Those pleadings remain part of the same defective process. The proceedings cannot be cured by a superficial change in representation while the foundational documents remain tainted. The matter is not divisible in law or in fact in the manner suggested. The attempted separation is artificial and without legal effect.

In *Wendall Robert Parson vs Gillian Therese Jackson* HH 792-17 p6 it was held that such an arrangement does not meet the scales of justice where it was stated:

> "It must follow therefore that despite the concession by Mr Samkange, I hold the view that allowing a legal practitioner to use the same papers prepared by a conflicted legal practitioner is irregular and improper. It is only in exceptional circumstances that such a situation should be condoned".

The matter in Wendall (supra) was an urgent matter. This application is not. The applicants did have time to put their house in order. It was not put in that order.

The South African Court in *Director of Public Prosecutions KwaZulu-Natal v Mzanywa and Another [2023] ZAKZPHC 108* expressed the same position as follows:

> "Mr Muziwodumo Miza (Mr Miza) is the public prosecutor who appeared for the applicant and who prosecuted the second respondent. He is the same person who deposed to the founding affidavit in these review proceedings. He is also the person who drew the applicant's heads of argument. Thankfully, despite his name appearing on the heads of argument, he is not the counsel who appeared before us to argue the matter, as it is obviously totally undesirable that counsel should personally argue a matter in which he or she has deposed to the founding affidavit. That is because: '… if he is a witness he compromises his capacity to give the conduct of the case his objective professional attention".

The court finds that the conduct of the legal practitioner representing the respondents is legally improper. A deponent to an affidavit assumes the position of a witness. A witness cannot simultaneously act as legal counsel in the same matter, as this creates a conflict of roles, unless appearing in person. Acting in both capacities renders the proceedings irregular as held in *MacFoy* v *United Africa* Co Ltd [1961] 3 All ER 1169 at 1172 that:

> "If an act is void, then, it is in law a nullity. It is not only bad but incurably bad … And every proceeding which is founded on it is also bad and incurably bad. You cannot put something on nothing and expect it to stay there. It will collapse."
>
> The applicant's objection is therefore upheld.

The subsequent involvement of a second legal practitioner does not cure the defect. The pleadings and heads of argument remain those prepared and filed by the initial practitioner who had already assumed the role of a witness. Heads of argument must be filed by a duly acting legal representative, not by a witness. Consequently, the purported heads of argument are invalid and they in turn breach of Rule 59 (22) of the High Court Rules of 2021 which states

> "Where heads of argument that are required to be filed are not filed within the period specified in sub rule (21), the respondent concerned shall be barred and the court or judge may deal with the matter as unopposed or direct that it be set down for hearing on the unopposed roll".

The result is that the second respondent is effectively barred, as there are no valid heads of argument properly before the court. There was no impropriety in seeking a postponement in order to regularise representation and ensure compliance with

procedural requirements.Therefore clearly there is no opposition to the application for review in this case. The application is upheld and the review succeeds. It is therefore ordered as follows: -

1. The ruling of the 1st Respondent delivered on 28th October 2025 in CRB 686–7/25 be and is hereby reviewed and set aside.

2. The criminal charge preferred under Section 113 of the Criminal Law (Code) is set aside as being incompetent at law.

3. There is no order as to costs

Coghlan & Welsh, applicants' legal practitioners
National Prosecuting Authority, 2nd respondent's legal practitioners